

IP05

Parliament and the Legislative Process

About 2-3 questions a paper, the largest single block in Indian Polity. The financial committees are the densest repeat zone - Estimates Committee asked in 2013, 2018 and 2021, PAC in 2013 and 2018. Article 169 on the Legislative Council came in 2016 and 2021.

Articles 79 to 122 plus the money Articles. This is the most number-heavy chapter in Indian Polity - strengths, ages, quorums, majorities, committee sizes. RPSC does not test whether you understand Parliament. It tests whether you know that the Public Accounts Committee has 22 members and the Estimates Committee has 30.

Parliament (Art. 79-122)

Composition

- Art. 79 - President + 2 Houses
- Art. 80 - RS max 250 (238+12)
- Art. 81 - LS max 550 (530+20)
- Art. 83 - RS permanent, LS 5 years
- Art. 84 - age 30 RS, 25 LS

Working

- Art. 85 - 6-month session gap
- Art. 100 - quorum 1/10
- Art. 89 - RS Chairman
- Art. 93 - LS Speaker
- Art. 105 - privileges

Bills

- Ordinary Bill
- Money Bill - Art. 110
- Financial Bill - Art. 117
- Constitution Amendment - Art. 368
- Art. 108 - joint sitting

Finance

- Art. 112 - Annual Financial Statement
- Art. 113 - demands for grants
- Art. 114 - Appropriation Bill
- Art. 266 - CFI & Public Account
- Art. 267 - Contingency Fund

Devices

- Question Hour - first hour
- Zero Hour - Indian innovation
- No-confidence motion - 50 members
- Cut motions - policy, economy, token
- Adjournment motion

Committees

- PAC 22 = 15 + 7
- Estimates 30, all Lok Sabha
- COPU 22 = 15 + 7
- 24 DRSCs, 31 = 21 + 10
- Art. 151 - CAG report to PAC

Membership

- Art. 102 - disqualifications
- Art. 103 - President decides on EC opinion
- 10th Schedule - anti-defection
- 52nd Amdt 1985; 91st Amdt 2003
- Kihoto Hollohan (1992)

The two Houses - strengths and terms

Article 79 says Parliament consists of the President and the two Houses - the Council of States and the House of the People. Note the wording. The President

is part of Parliament even though he never sits in either House. That is why a Bill is not law until he assents. Now the numbers, and these must be exact.

Strength of the two Houses

Item	Rajya Sabha	Lok Sabha
Governing Article	Article 80	Article 81
Maximum strength	250	550
Break-up	238 elected from States and UTs + 12 nominated by the President	530 from States + 20 from Union Territories
Present strength	245	543
Minimum age	30 years (Article 84)	25 years (Article 84)
Term (Article 83)	Permanent body, not subject to dissolution; 1/3 retire every second year; each member six years	Five years unless dissolved earlier

- The 12 nominated members of the Rajya Sabha are chosen for special knowledge in literature, science, art and social service.
- Allocation of Rajya Sabha seats to States is set out in the Fourth Schedule.
- The two nominated Anglo-Indian seats in the Lok Sabha under Article 331 were discontinued by the 104th Amendment Act, 2019, with effect from 25 January 2020.
- Article 82 - seats are readjusted after every census; the 42nd and 84th Amendments froze the allocation on the 1971 census until the first census taken after 2026.
- The Lok Sabha's term may be extended by Parliament by one year at a time during a Proclamation of Emergency, and not beyond six months after the Proclamation ceases.

CURRENT LINK

Current link (as of September 2026): the freeze in Article 82 runs only 'until the first census taken after 2026'. That census is now the live constitutional question, because the next delimitation of Lok Sabha seats and the one-third reservation of seats for women under the 106th Amendment both hang on it. Learn the constitutional wording - 'the first census taken after 2026' - because that is the phrase an examiner will quote.

Lok Sabha against Rajya Sabha - the comparison that gets asked

Do not learn the two Houses as separate lists. Learn them against each other. Almost every statement-based question here works by asserting a Lok Sabha power for the Rajya Sabha, or the reverse. Fix the asymmetries and you can answer without recalling the Article.

Lok Sabha vs Rajya Sabha

Lok Sabha	Rajya Sabha
Directly elected by the people	Elected indirectly by State Assemblies; 12 members nominated
Dissolvable; term five years	Permanent body, never dissolved; one-third retire every second year
Money Bill can be introduced only here	Cannot introduce a Money Bill; must return it in 14 days with recommendations only
Demands for grants are voted only here (Article 113)	Can only discuss the Budget, not vote the demands
Council of Ministers is collectively responsible to this House alone	Cannot remove the government; no-confidence motion is not admissible here
No-confidence motion and adjournment motion available	Neither motion is available
Presided over by the Speaker, who is a member	Presided over by the Vice-President, who is not a member
No special powers over the States	Article 249 and Article 312 powers belong exclusively to it

YAAD RAKHO

Trick to remember which House is stronger where. Money and government go to the Lok Sabha; the States and the services go to the Rajya Sabha. Anything about the Union List entering a State subject (Article 249) or creating an All-India Service (Article 312) is Rajya Sabha, and only Rajya Sabha.

Sessions, quorum and the presiding officers

The Constitution does not fix how many sessions Parliament must hold. It fixes only a maximum gap. Article 85 says six months must not pass between the last sitting of one session and the first sitting of the next. Three sessions -

Budget, Monsoon, Winter - are convention, not law. Summoning, prorogation and dissolution are all done by the President.

- Article 100 - quorum is one-tenth of the total number of members of the House.
- The presiding officer has no ordinary vote; he exercises a casting vote only in the event of a tie.
- Article 93 - Speaker and Deputy Speaker of the Lok Sabha; Article 89 - Chairman and Deputy Chairman of the Rajya Sabha.
- Removal of the Speaker or the Deputy Speaker needs a resolution passed by a majority of all the then members of the House - the effective majority - after 14 days' notice.
- The Speaker does not preside while a resolution for his own removal is under consideration, but he may speak and vote in that debate.
- Article 105 - freedom of speech in Parliament and immunity from court proceedings for anything said or any vote given.

What the Speaker does - and the one thing he does not

Function	Provision
Certifies whether a Bill is a Money Bill	Article 110(4); the certificate is final
Presides over a joint sitting of both Houses	Article 118(4)
Decides disqualification on the ground of defection	Tenth Schedule
Does NOT decide disqualification under Article 102(1)	That is decided by the President on the opinion of the Election Commission - Article 103

TRAP

The Speaker decides defection cases, but he does NOT decide the ordinary disqualifications of Article 102(1) - office of profit, unsoundness of mind, insolvency, and so on. Those go to the President, who must obtain the Election Commission's opinion under Article 103 and is bound by it. This exact swap has been used as a NOT-a-function-of-the-Speaker question.

Types of Bills - and how each one travels

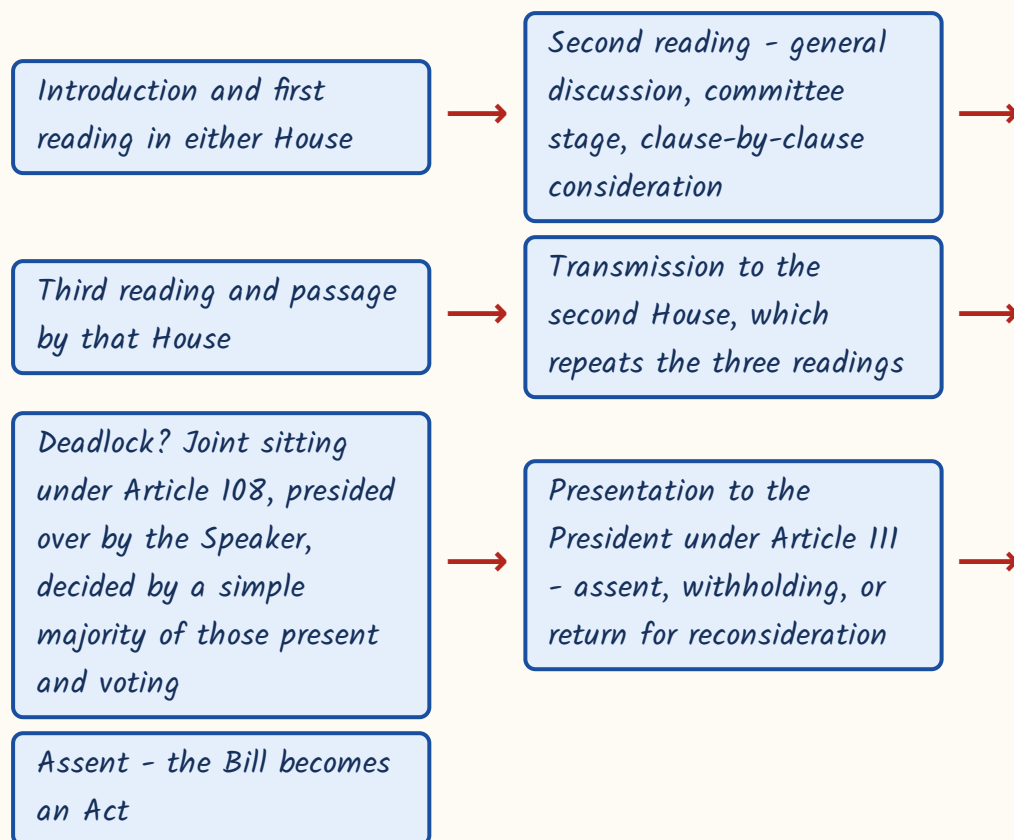
Four kinds of Bill, and they behave differently at every stage - who may introduce them, whether the President's recommendation is needed, what the Rajya Sabha may do, and whether a joint sitting is possible. Build this table into your memory as a grid, not as four separate paragraphs.

The four types of Bill

Type	Where introduced	Rajya Sabha's power	Joint sitting?
Ordinary Bill	Either House	Full power - may reject, amend or delay	Yes, under Article 108
Money Bill (Article 110)	Lok Sabha only, on the President's recommendation	Must return within 14 days; may only make recommendations	No
Financial Bill (Article 117)	Article 117(1) Bills only in the Lok Sabha on the President's recommendation; 117(3) Bills in either House	Full power, like an ordinary Bill	Yes
Constitution Amendment Bill (Article 368)	Either House; no President's recommendation needed	Must be passed by each House separately by the special majority	No

- Every Money Bill is a Financial Bill, but every Financial Bill is not a Money Bill. This sentence is asked verbatim.
- Article 109 lays down the special procedure for Money Bills; Article 117 governs Financial Bills.
- A Constitution Amendment Bill needs a majority of the total membership of each House AND two-thirds of the members present and voting.
- The President cannot return a Money Bill for reconsideration - he can only assent or withhold.

How an ordinary Bill becomes an Act



- Article 108 - a joint sitting resolves a deadlock over an ordinary or a financial Bill.
- A joint sitting is NOT available for a Money Bill or for a Constitution Amendment Bill.
- Only three joint sittings have ever been held - Dowry Prohibition Bill (1961), Banking Service Commission (Repeal) Bill (1978) and Prevention of Terrorism Bill (2002).

- Learn the three in that order; RPSC has set them as a chronology question.

The Money Bill - Article 110 in full

A Money Bill is the sharpest asymmetry in the Constitution. The Rajya Sabha is almost cut out of it, and the Speaker is the sole judge of what counts as one. Because the definition is narrow and the consequences are large, this is a favourite for statement sets.

- It can be introduced only in the Lok Sabha, and only on the recommendation of the President.
- It cannot be introduced by a private member.
- The Rajya Sabha must return it within 14 days and may only make recommendations, which the Lok Sabha is free to reject.
- If the Rajya Sabha does not return it in 14 days, it is deemed passed by both Houses.
- The Speaker's certificate that a Bill is a Money Bill is final - Article 110(4).
- There is no joint sitting for a Money Bill, and the President cannot return it.
- The 14 days are to RETURN the Bill - the Rajya Sabha has no power to reject it, and the certificate is the Speaker's, never the Chairman's.

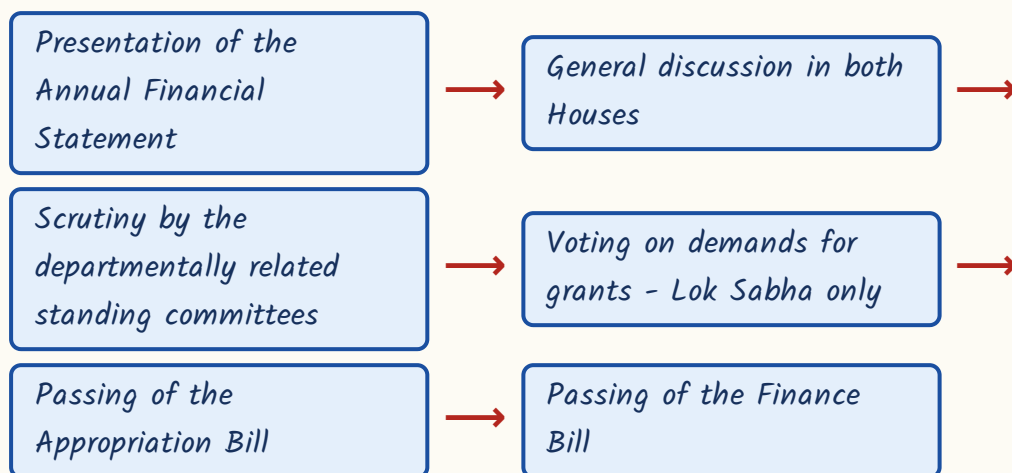
The Budget, the funds and the cut motions

The word Budget does not appear in the Constitution. Article 112 calls it the Annual Financial Statement. The whole financial chapter is a sequence of Articles from 112 to 117, and RPSC matches them. Learn the Article numbers alongside the stages.

Financial Articles

Article	Provision
112	Annual Financial Statement - the Budget
113	Demands for grants; voted only by the Lok Sabha
114	Appropriation Bill - authorises withdrawal from the Consolidated Fund
115	Supplementary, additional and excess grants
116	Vote on account, votes of credit and exceptional grants
265	No tax shall be levied or collected except by authority of law
266	Consolidated Fund of India and Public Account of India
267	Contingency Fund of India

The Union Budget, stage by stage



Cut motions - learn the amounts, they are matched

Cut motion	Effect	Purpose
Policy cut	Reduces the demand to Re 1	Total disapproval of the policy underlying the demand
Economy cut	Reduces the demand by a specified amount	Demand for economy in expenditure
Token cut	Reduces the demand by Rs 100	Ventilates a specific grievance within the Government of India's sphere
Vote on account	Not a cut motion at all	Advance grant to meet expenditure pending passage of the Appropriation Bill

- The corpus of the Contingency Fund of India was raised from Rs 500 crore to Rs 30,000 crore by the Finance Act, 2021.
- The Contingency Fund is held by the Finance Secretary on behalf of the President.
- Expenditure 'charged' on the Consolidated Fund can be discussed but is NOT submitted to the vote of Parliament.
- Charged items include the salaries of the President, the Speaker, the judges and the CAG, and all debt charges.
- Money can be withdrawn from the Consolidated Fund only under an appropriation made by law.

TRAP

Article 266 covers the Consolidated Fund AND the Public Account. Article 267 is the Contingency Fund alone. The pairing 'Article 266 - Contingency Fund' is a standard wrong option in a NOT-correctly-matched question.

Parliamentary devices – question hour, zero hour and the motions

These are the tools an MP uses to hold the government to account on the floor. The examiner's interest is narrow – which device needs how many members, which one is in the Rules and which one is not, and which House it is available in.

Devices on the floor of the House

Device	What it is	The examinable detail
Question Hour	The first hour of a sitting	Regulated by the Rules of Procedure
Starred question	Answered orally	Supplementary questions are permitted
Unstarred question	Answered in writing	No supplementary questions allowed

Device	What it is	The examinable detail
Short notice question	Matter of urgent public importance	Asked at less than ten days' notice
Half-an-hour discussion	On a matter already answered in the House	Requires sufficient public importance
Zero Hour	Follows Question Hour; matters raised without notice	An Indian innovation; finds NO mention in the Rules of Procedure
No-confidence motion	Against the Council of Ministers	Lok Sabha only; needs 50 members; need not state any reason
Adjournment motion	To discuss a definite matter of urgent public importance	Lok Sabha only; needs 50 members; involves an element of censure
Censure motion	Against a Minister or the whole Council	Must state the reasons; can be moved only in the Lok Sabha
Calling attention	Draws a Minister's attention to an urgent matter	An Indian innovation, but it IS mentioned in the Rules

TRAP

Zero Hour is the Indian innovation with no mention in the Rules of Procedure. Question Hour IS regulated by the Rules. A NOT-correct question has been built precisely on reversing these two.

Parliamentary committees - the exact strengths

This is the highest-yield block in the chapter. RPSC has asked the membership of the Public Accounts Committee and the Estimates Committee directly, more than once, in different years. There is no understanding to be had here - only exact numbers. Learn them and do not confuse the three financial committees.

The three financial committees - exact strengths

Committee	Strength	Composition	Origin
Public Accounts Committee	22	15 Lok Sabha + 7 Rajya Sabha	First set up in 1921; examines the CAG's audit reports
Estimates Committee	30	ALL 30 from the Lok Sabha; no Rajya Sabha member	Constituted 1950 on John Mathai's recommendation
Committee on Public Undertakings	22	15 Lok Sabha + 7 Rajya Sabha	Created 1964 on the Krishna Menon Committee's recommendation

ASKED IN RAS

Asked in RAS Pre 2018 - the total membership of the Public Accounts Committee. Answer: 22, being 15 from the Lok Sabha and 7 from the Rajya Sabha. Both the total and the break-up were asked as separate questions in the same paper.

ASKED IN RAS

Asked in RAS Pre 2013 and again in 2021 - the Estimates Committee consists of 30 members, all elected from the Lok Sabha. Asked again in 2018 and 2021 as a statement set: it is the largest parliamentary committee, it is called the 'continuous economy committee', and it examines estimates only after the Budget has been voted.

ASKED IN RAS

Asked in RAS Pre 2013 - since which year has the Chairman of the Public Accounts Committee been drawn from the Opposition by convention?
Answer: 1967.

YAAD RAKHO

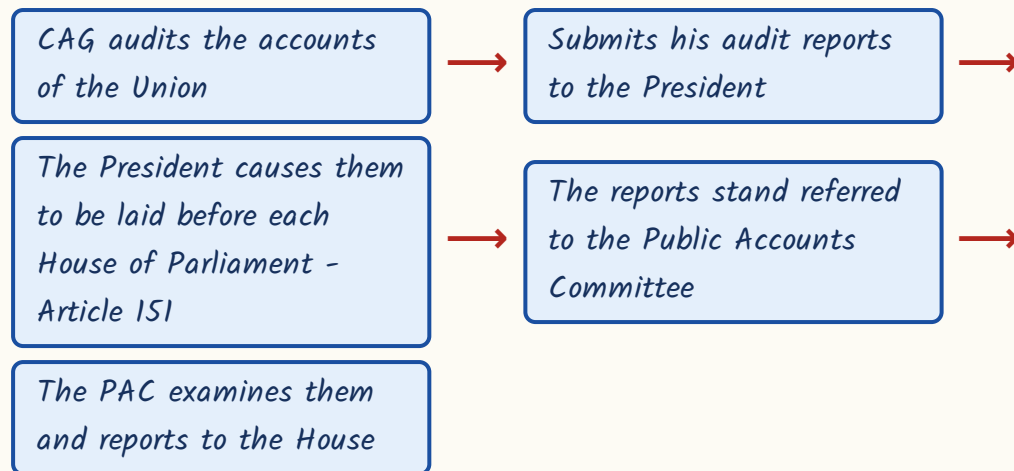
PAC and COPU are twins - 22 each, 15 plus 7 each. Estimates stands alone - 30, all Lok Sabha, no Rajya Sabha member at all. If an option says the Committee on Public Undertakings has 30 members, it is wrong; that number belongs to Estimates.

Other committees whose strengths are asked

Committee	Strength	Composition
Departmentally Related Standing Committees (24 of them)	31 each	21 Lok Sabha + 10 Rajya Sabha
Committee on the Welfare of SCs and STs	30	20 Lok Sabha + 10 Rajya Sabha
Committee on Empowerment of Women	30	20 Lok Sabha + 10 Rajya Sabha
Joint Committee on Offices of Profit	15	10 Lok Sabha + 5 Rajya Sabha
Business Advisory Committee (Lok Sabha)	15	Speaker is the Chairman
Business Advisory Committee (Rajya Sabha)	11	Chairman of the Rajya Sabha presides
Committee on Private Members' Bills and Resolutions	15	A Lok Sabha committee

- Of the 24 standing committees, 16 are serviced by the Lok Sabha Secretariat and 8 by the Rajya Sabha Secretariat.
- The standing committee system began in 1993 with 17 committees and was restructured into 24 in 2004.
- A Minister cannot be a member of a departmentally related standing committee.
- The term of the PAC, the Estimates Committee and the COPU is one year.
- The strength of the Committee on Public Undertakings was raised from 15 to 22 in 1974.

Where a CAG report goes - Articles 148 to 151



ASKED IN RAS

Asked in RAS Pre 2021 - under which Article are the CAG's audit reports on the Union accounts laid before Parliament? Answer: Article 151.

Disqualification, anti-defection and Article 169

Two separate tracks of disqualification, and you must keep them apart. The ordinary grounds are in Articles 102 and 191, and the President decides those after taking the Election Commission's opinion under Article 103. Defection is a separate track, in the Tenth Schedule, decided by the presiding officer.

- Anti-defection is in the Tenth Schedule, inserted by the 52nd Amendment Act, 1985.
- The 91st Amendment Act, 2003 deleted the exemption for a 'split' by one-third of the legislature party.
- Only a merger by two-thirds of the members of the legislature party now escapes disqualification.
- *Kihoto Hollohan v. Zachillhu* (1992) upheld the Tenth Schedule but held the presiding officer's decision subject to judicial review.

- Articles 102 and 191 lay down the ordinary disqualifications; under Article 103 the President decides and his decision is final.

Article 169 is a small provision that RPSC keeps returning to. A State's Legislative Council can be created or abolished, but only through a two-step process, and the wording of the first step is the whole question.

- The Legislative Assembly must first pass a resolution by a majority of the TOTAL membership of the Assembly.
- The same resolution must also carry a majority of not less than two-thirds of the members present and voting.
- Parliament may then make the law - but Parliament is not bound to act on the Assembly's resolution.
- Such a law is NOT deemed to be an amendment of the Constitution for the purposes of Article 368.
- This is a double requirement, not an either-or. Read the option for the word 'and'.

ASKED IN RAS

Asked in RAS Pre 2016 and again in 2021 - the majority required in the State Assembly under Article 169. Answer: a majority of the total membership of the Assembly AND a majority of not less than two-thirds of the members present and voting. The 2021 version was a statement set that also tested the point that the law is not an amendment under Article 368.

REVISION RECAP

1. Parliament = President + Rajya Sabha + Lok Sabha (Article 79); the President sits in neither House.
2. Rajya Sabha max 250 = 238 + 12 nominated; present 245. Lok Sabha max 550 = 530 + 20; present 543.

3. Anglo-Indian nomination under Article 331 ended with the 104th Amendment, 2019, from 25 January 2020.
4. Seats frozen on the 1971 census by the 42nd and 84th Amendments until the first census taken after 2026.
5. Age 30 for the Rajya Sabha, 25 for the Lok Sabha; quorum one-tenth; session gap not more than six months.
6. Speaker certifies a Money Bill and presides at a joint sitting, but Article 102(1) disqualification is the President's call on the EC's opinion.
7. Money Bill - Lok Sabha only, President's recommendation, Rajya Sabha returns it in 14 days with recommendations, no joint sitting, no return by the President.
8. Joint sitting under Article 108 is barred for a Money Bill and for a Constitution Amendment Bill; only three have ever been held - 1961, 1978, 2002.
9. Every Money Bill is a Financial Bill; not every Financial Bill is a Money Bill.
10. Budget order: presentation, general discussion, standing committees, voting on demands, Appropriation Bill, Finance Bill.
11. Policy cut to Re 1, economy cut by a specified amount, token cut by Rs 100.
12. Article 266 = Consolidated Fund and Public Account; Article 267 = Contingency Fund, corpus Rs 30,000 crore since the Finance Act, 2021.
13. Charged expenditure is discussed but never voted.
14. Question Hour is in the Rules; Zero Hour is an Indian innovation and is not.
15. No-confidence and adjournment motions - Lok Sabha only, 50 members each.
16. PAC 22 = 15 Lok Sabha + 7 Rajya Sabha; set up 1921; Opposition Chairman by convention since 1967.
17. Estimates Committee 30, all from the Lok Sabha; 1950, John Mathai; largest committee; examines estimates after the Budget is voted.
18. Committee on Public Undertakings 22 = 15 + 7; created 1964 on the Krishna Menon Committee's recommendation.
19. 24 DRSCs of 31 members each = 21 + 10; began 1993 with 17, restructured to 24 in 2004; no Minister may be a member.
20. Article 169 needs a double majority in the Assembly, and even then Parliament is not bound to act.